

25TRCV04051 25TRCV04051

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Case Number: 25TRCV04051 Hearing Date: July 8, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

JOHN O.W. ROE

, et al.;

Plaintiffs,

vs.

DEL AMO HOSPITAL, INC.

, et al.;

Defendants.

Case

No.:

25TRCV04051

Hearing

Date:

July
8, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

SPECIALLY APPEARING DEFENDANT UNIVERSAL HEALTH
SERVICES, INC.'S MOTION TO QUASH SERVICE OF SUMMONS FOR LACK OF JURISDICTION

(2)

PLAINTIFFS' REQUESTS TO CONTINUE THE HEARING
AND PERMIT JURISDICTIONAL DISCOVERY

(3)

PLAINTIFFS'
MOTION TO COMPEL DEFENDANT UNIVERSAL HEALTH SERVICES, INC.'S RESPONSES
TO SPECIAL INTERROGATORIES (SET ONE)

(4)

PLAINTIFFS' MOTION TO COMPEL DEFENDANT
UNIVERSAL HEALTH SERVICES, INC.'S RESPONSES TO REQUESTS FOR PRODUCTION (SET
ONE)

(5)

PLAINTIFFS' REQUESTS FOR MONETARY SANCTIONS

MOTION
TO QUASH

MOVING PARTY: Specially Appearing Defendant,
Universal Health Services, Inc.

RESPONDING PARTY: Plaintiffs, John O.W. Roe, Jane W.Y. Roe,
Jane T.B. Roe, and Jane M.H. Roe

MOTIONS

TO COMPEL FURTHER

MOVING PARTY: Plaintiffs, John O.W. Roe, Jane W.Y. Roe, Jane T.B. Roe, and Jane M.H. Roe

RESPONDING PARTY: Specially Appearing Defendant, Universal Health Services, Inc.

(1)

Specially

Appearing Defendant Universal Health Services, Inc.'s Motion to Quash Service of Summons for Lack of Personal Jurisdiction is GRANTED pursuant to Code of Civil Procedure sections 410.10 and 418.10.

(2)

Plaintiffs'

Requests to Continue the Hearing and Permit Jurisdictional Discovery are DENIED pursuant to In re Automobile Antitrust Cases I & II (2005) 135 Cal.App.4th 100, 127.

(3)

Plaintiffs'

Motion to Compel Defendant Universal Health Services, Inc.'s Responses to Special Interrogatories (Set One) is DENIED pursuant to Code of Civil Procedure section 410.10.

(4)

Plaintiffs'

Motion to Compel Defendant Universal Health Services, Inc.'s Responses to Requests for Production (Set One) is DENIED pursuant to Code of Civil Procedure section 410.10.

(5)

Plaintiffs'

Requests for Monetary Sanctions are DENIED pursuant to Code of Civil Procedure section 410.10.

The Court considers the moving

papers filed on February 29 and April 2, 2026, the opposition briefs filed on June 23 and 24, 2026, and the reply briefs filed on June 29 and 30, 2026.

BACKGROUND

Factual Background

On November 26, 2025, plaintiffs John O.W. Roe, Jane W.Y. Roe, Jane T.B. Roe, and Jane M.H. Roe (collectively, "Plaintiffs") filed the Complaint for Damages against defendants Del Amo Hospital, Inc. dba Del Amo Behavioral Health System ("Del Amo"), UHS of Delaware, Inc. ("UHSD"), Universal Health Services, Inc. ("UHSI"), John 1 Doe, Jane 2 Doe, John 3 Doe, Jane 4 Doe, John 5 Doe, John 6 Doe, and DOES 7 through 100 (collectively, Defendants").

On January 23, 2026, Plaintiffs filed the First Amended Complaint for Damages ("FAC") against Defendants.

On April 28, 2026, Plaintiffs filed the Second Amended Complaint ("SAC") against Defendants. The SAC includes the following causes of action: (1) Violation of the Unruh Act (Civil Code § 51); (2) Sexual Harassment (Civil Code § 51.9); (3) Constructive Fraud (Civil Code § 1573); (4) Intentional Infliction of Emotional Distress; (5) Negligence; (6) Negligent Supervision; (7) Negligent Hiring and Retention; (8) Negligent Failure to Warn, Train, or Educate; (9) Sexual Assault; (10) Sexual Battery (Civil Code § 1708.5); and (11) Gender Violence (Civil Code § 52.4).

On December 22, 2025, Plaintiffs served Special Interrogatories (Set One) and Requests for Production (Set One) upon UHSI. (Declaration of Jamie M. Majerus re: Motions to Compel Further ("Majerus Decl. re: MTCF"), ¶ 3.) The responses were due on January 30, 2026, without any extensions. (Majerus Decl. re: MTCF, ¶ 3.)

On January 27, 2026, Plaintiffs' counsel and UHSI's counsel spoke by phone to discuss this case as well as the John G.T. Roe case. (Declaration of David A. Goldstein re: Motions to Compel Further ("Goldstein Decl. re: MTCF"), Exh. B, p. 2.) UHSI's counsel followed up with an email the same day to document their conversation.

(Goldstein Decl. re: MTCF, Exh. B, p. 2.) In this email, UHSI's counsel claimed that Plaintiffs' counsel "expressed that [they] were not willing to grant a similar [discovery] extension in the John OW Roe case unless the hearing on UHSI's

motion to quash is continued, as you want the discovery responses in advance of your opposition deadline. You also said you want to take the Ben Waters deposition in advance of the opposition deadline. We are firming up Ben Waters' availability, but he won't be available prior to your current opposition deadline of February 17. We will get you his soonest available dates this week.

¶ Accordingly, we will stipulate to continue the hearing on UHSI's motion to quash in John OW Roe to a date after the Waters deposition takes place, so that you may have the benefit of that deposition in preparing your opposition, and so that we can have the benefit of an extension to respond to all the pending written discovery to UHSI and UHSD. Once we get you Ben Waters' availability later this week, we can hash out the stipulation, which I'm happy to prepare." (Goldstein Decl. re: MTCF, Exh. B, p. 2.) Additionally, UHSI's counsel requested confirmation that Plaintiffs would grant UHSI an extension to respond by February 17, 2026. (Goldstein Decl. re: MTCF, Exh. B, p. 2.)

On January 29, 2026, Plaintiffs' counsel replied, stating, "I will want answers to written discovery prior to the deposition, along with documents. But I see that you have taken the O.W. MTQ off calendar – on 1/13. Given the numerous requests for extension, I believe such a stipulation may be required for both OW and GT, but will wait to see your responses to written in GT. ¶ Please send an OW stipulation for our review. We'll redline. Thanks." (Goldstein Decl. re: MTCF, Exh. B, p. 1.)

Later that same day, UHSI's counsel replied: "Thank you. I understand your email grants the requested discovery extension in the John OW Roe case to 2/17/26. We agree that we will respond to the pending written discovery and produce documents prior to the deposition, and that that will all take place prior to the MTQ hearing and your opposition. The John OW Roe MTQ hearing will be continued pursuant to a stipulation. I'll send a draft of the stipulation over soon." (Goldstein Decl. re: MTCF, Exh. B, p. 1.) UHSI's counsel also stated that "the 'off calendar' notation on the court's docket from 1/13 is in connection with a prior reservation that was cancelled. We made a new reservation and filed our MTQ on 1/20. The Court just hasn't processed the MTQ yet,

so it's not appearing on the docket. Our

March 2, 2026 hearing date for the MTQ will probably show up on the Court's docket sometime soon, but per above, that date will be continued." (Goldstein Decl. re: MTCF, Exh. B, p. 1.)

On February 3, 2026, Plaintiffs' counsel emailed UHSI's counsel to request discovery responses without any objections, as those responses were now overdue. (Goldstein Decl. re: MTCF, Exh.

C, p. 3.) Throughout the subsequent email exchanges, Plaintiffs' counsel did not concede that any extension was granted, either explicitly or implicitly. (Goldstein Decl. re: MTCF, Exh. C, pp. 1-3.)

On February 17, 2026, UHSI provided responses to Plaintiffs' discovery requests, which included a combination of answers and objections. (Majerus Decl. re: MTCF, ¶ 4, Exhs. 1-2.)

On February 19, 2026, Plaintiffs filed a Notice of Related Case, informing the Court of Case No. 25TRCV04426.

On February 27, 2026, Plaintiffs issued a meet-and-confer letter to UHSI to address deficiencies in UHSI's responses, asserting that the responses were untimely and that all objections had been waived. (Majerus Decl. re: MTCF, ¶ 5, Exh. 3.)

On March 13, 2026, UHSI responded by disputing the claim of waiver and defending the validity of its responses. (Majerus Decl. re: MTCF, ¶ 6, Exh. 4.)

On March 26, 2026, the counsel for both parties spoke by phone but were unable to reach an agreement.

(Majerus Decl. re: MTCF, ¶ 7.) UHSI has not provided any supplemental responses to the discovery requests. (Majerus Decl. re: MTCF, ¶ 8.) However, UHSI asserts that it has supplied documents responsive to Requests for Production (Set One). (Goldstein Decl. re: MTCF, ¶ 9.)

Procedural
Background

(1)
Motion
to Quash

On February 3, 2026, the Court
granted Plaintiffs' Ex Parte Application to Continue the Hearing on Defendant UHSI's
Motion to Quash Service of Summons for Lack of Personal Jurisdiction to Allow
Plaintiffs to Conduct Additional Discovery.

The hearing, originally scheduled for March 2, 2026, was continued to
July 8, 2026.

On February 19, 2026, UHSI
filed this amended motion to quash.

On June 24, 2026, Plaintiffs
filed an opposition brief. On June 30,
2026, UHSI filed a reply brief.

(2)
Motion
to Compel Further – Special Interrogatories

On April 2, 2026, Plaintiffs
filed this motion to compel further. On
June 23, 2026, UHSI filed an opposition brief. On June 29, 2026, Plaintiffs filed a reply
brief.

(3)
Motion
to Compel Further – Requests for Production of Documents

On April 2, 2026, Plaintiffs
filed this motion to compel further. On June
24, 2026, UHSI filed an opposition brief. On June 30, 2026, Plaintiffs filed a reply
brief.

(1)
MOTION
TO QUASH

Legal Standard

A defendant may serve and file
a notice of motion to quash service of summons on the grounds of lack of

jurisdiction of the court over them. (Code Civ. Proc., § 418.10, subd. (a).) Code of Civil Procedure section 418.10 provides the exclusive procedure for challenging personal jurisdiction at the outset. (Roy v. Superior Court (2005) 127 Cal.App.4th 337, 342.) The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to section 418.10. (Code Civ. Proc., § 581, subd. (h).)

“A court of this state may exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States.” (Code Civ. Proc., § 410.10.) “The Due Process Clause protects an individual’s liberty interest in not being subject to the binding judgments of a forum with which he has established no meaningful ‘contacts, ties, or relations.’” (Burger King Corp. v. Rudzewicz (1985) 471 U.S. 462, 471-472.) A state court may not exercise personal jurisdiction over a party under circumstances that would offend “traditional notions of fair play and substantial justice.” (Asahi Metal Industry Co., Ltd., v. Superior Court of California, Solano County (1987) 480 U.S. 102, 113.)

When a defendant moves to quash service of the summons and complaint, the plaintiff has “the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service.” (Coulston v. Cooper (1966) 245 Cal.App.2d 866, 868.) The plaintiff must establish the facts of jurisdiction by a preponderance of the evidence. (Aquila, Inc. v. Superior Court (2007) 148 Cal.App.4th 556, 568.) “When a nonresident defendant challenges personal jurisdiction the burden shifts to the plaintiff to demonstrate by a preponderance of the evidence that all necessary jurisdictional criteria are met. [Citation.] This burden must be met by competent evidence in affidavits and authenticated documentary evidence. An unverified complaint may not be considered as an affidavit supplying necessary facts.” (Jewish Defense Organization, Inc. v. Superior Court (1999) 72 Cal.App.4th 1045, 1054-1055.)

“Personal jurisdiction may be either general or specific.” (Vons Companies, Inc. v. Seabest Foods, Inc. (1996) 14 Cal.4th 434, 445 (Vons).) “A defendant that has substantial, continuous, and systematic contacts with the forum state is subject to general jurisdiction in the state, meaning jurisdiction on any cause of action.” (HealthMarkets, Inc. v. Superior Court (2009) 171 Cal.App.4th 1160, 1167.) “General

jurisdiction, as its name implies, extends to any and all claims brought against a defendant. Those claims need not relate to the forum State or the defendant's activity there; they may concern events and conduct anywhere in the world. But that breadth imposes a correlative limit: Only a select set of affiliations with a forum will expose a defendant to such sweeping jurisdiction. In what [the Supreme Court] ha[s] called the paradigm case, an individual is subject to general jurisdiction in her place of domicile. And the equivalent forums for a corporation are its place of incorporation and principal place of business.” (Preciado v. Freightliner Custom Chassis Corp., 2023) 87 Cal.App.5th 964, 976, internal citation omitted.)

A nonresident may be subject to specific jurisdiction if a three-prong test is met. “First, the defendant must have purposefully availed itself of the state's benefits. Second, the controversy must be related to or arise out of the defendant's contacts with the state. Third, considering the defendant's contacts with the state and other factors, California's exercise of jurisdiction over the defendant must comport with fair play and substantial justice.” (Gilmore Bank v. AsiaTrust New Zealand Ltd. (2014) 223 Cal.App.4th 1558, 1568, internal citations and emphasis omitted.) “When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction. Once facts showing minimum contacts with the forum state are established, however, it becomes the defendant's burden to demonstrate that the exercise of jurisdiction would be unreasonable.” (Vons, supra, 14 Cal.4th at p. 449, internal citations omitted.)

Request for Judicial Notice

Filed concurrently with its moving papers, UHSI has filed a Request for Judicial Notice (“RJN”), requesting this Court take judicial notice of:

1.
Plaintiffs' Complaint, Exhibit A;
- 2.

Signed Order on Specially-Appearing Defendant,
Universal Health Services, Inc.'s Motion to Quash Service of Summons for Lack
of Jurisdiction, from Case No. MCC2001207, Joann Baker v. Temecula Valley
Hospital, Inc., et al., Exhibit B; and

3.

Minute Order from Case No.25TRCVXXXXX, John
XX. Doe v. Doe 1, a California Corporation, et al., Exhibit C.

The Court GRANTS these requests. The Court takes judicial notice of these
documents as “[r]ecords of (1) any court of this state or (2) any court of
record of the United States or of any state of the United States[.]” in
accordance with Evidence Code section 452, subdivision (d). However, the Court will not take judicial
notice of the truth of the matters presented in these documents since they are
subject to interpretation. (See L.B.
Research & Education Foundation v. UCLA Foundation (2005) 130
Cal.App.4th 171, 180, fn. 2, citing *Comings v. State Bd. of Education*
(1972) 23 Cal.App.3d 94.)

Discussion

UHSI seeks to quash the
service of summons, arguing that “the Court lacks power to exercise personal
jurisdiction.” (Motion, p. 5:3-4.) UHSI contends that it “is not a California
resident, has no contacts, ties, or relationship with California, and is not
subject to personal jurisdiction for Plaintiffs’ claims in California.” (Motion, p. 5:6-7.) Conversely, Plaintiffs assert that the
Court
does have specific personal jurisdiction over UHSI. (Opp., pp. 7:18-11:16.)

Purposefully Availed

Plaintiffs maintain that (1) “UHSI
purposefully directed its conduct at California through UHSD” and (2) “UHSI and
Del Amo are alter egos, making Del Amo’s California conduct and citizenship
UHSI’s own.” (Opp., pp. 7:18, 8:22-23.)

Direct Conduct

“A corporation or other
business entity acts through authorized individuals, and the activities of its

employees are attributed to the business entity for purposes of personal jurisdiction. [Citation.] An individual's status as an employee acting on behalf of his or her employer does not insulate the individual from personal jurisdiction based on his or her forum contacts. [Citations.]

Apart from an employment relationship, activities that are undertaken on behalf of a defendant may be attributed to that defendant for purposes of personal jurisdiction if the defendant purposefully directed those activities toward the forum state. [Citations.]"

(Anglo Irish Bank Corp., PLC v. Superior Court (2008) 165 Cal.App.4th 969, 981-982, internal citations and quotations omitted (Anglo).)

"In our view, reliance on state substantive law of agency and alter ego to determine the constitutional limits of specific personal jurisdiction is unnecessary and is an imprecise substitute for the appropriate jurisdictional question. The proper jurisdictional question is not whether the defendant can be liable for the acts of another person or entity under state substantive law, but whether the defendant has purposefully directed its activities at the forum state by causing a separate person or entity to engage in forum contacts. That constitutional question does not turn on the specific state law requirements of alter ego or agency, although the inquiry may be similar in some circumstances. [Citations.]" (Anglo, supra, 165 Cal.App.4th at p. 983-984, internal citations omitted.)

"[W]hen analyzing jurisdiction over a foreign parent corporation, courts begin[] with the firm proposition that neither ownership nor control of a subsidiary corporation by a foreign parent corporation, without more, subjects the parent to the jurisdiction of the state where the subsidiary does business. [Citation.] ... In Sonora Diamond Corp. v. Superior Court (2000) 83 Cal.App.4th 523, 552 [99 Cal.Rptr.2d 824], the court emphasized that [t]he critical acts may be taken directly by the parent or indirectly through the subsidiary, but in all events must be attributable to the parent corporation itself. Thus, the theory does not rest on a finding that the subsidiary is a sham corporation or an agent or representative of the parent. Rather, the focus is on the acts of the parent itself." (SK Trading International Co. Ltd. v. Superior Court of San Francisco County (2002) 77 Cal.App.5th 378, 388, internal citation and quotations omitted (SK Trading).) "[I]t is sufficient, for purposes of the purposeful availment inquiry, that [the parent company] directed [its

subsidiary] towards California for the purpose of engaging in economic activity with California residents.” (Id. at p. 389.)

Here, Plaintiffs endeavor to rely on Section 4 of the Professional Services Agreement (“PSA”) between UHSD and UHSI to assert that “Del Amo’s California operation is [] not UHSD’s contact alone; it is conduct UHSI caused, undertaken in UHSI’s name and for UHSI’s account — the conduct that ‘must be attributable to the parent corporation itself.’ ” (Opp., p. 7:25-27.)

However, Section 4 of the PSA specifies that “[UHSD] shall provide management and professional services to UHSI in compliance with all applicable federal, state and local laws, regulations, interpretative guidelines, accreditation/certification standards, and orders and requirements on any federal, state, county or local municipal authority[.]” (Declaration of Guinness J. Costello re: Motion to Quash (“Costello Decl. re: MTQ”), Exh. 5, § 4.) “Such services shall include, at a minimum, the following:” (1) general management and development services, (2) finance and accounting, (3) compliance with laws, (4) legal actions and contract negotiations, (5) taxes, (6) insurance/risk management, (7) development, and (8) design and construction. (Costello Decl. re: MTQ, Exh. 5, § 4.)

This language does not imply that UHSI has purposefully directed its activities at California by causing UHSD to engage in forum contacts or to become involved with Del Amo. It simply confirms that UHSD was tasked with managing and overseeing the operations of UHSI. Furthermore, as UHSI emphasizes, the 2011 PSA “specifically states that it is ‘separate and distinct from any management services agreement between [UHSD] and any operating subsidiary of UHSI’—i.e., Del Amo.” (Costello Decl. re: MTQ, Exh. 5, Background, ¶ D.)

Moreover, Plaintiffs highlight UHSI’s lack of employees. (Opp., p. 8:12.) They contend that “[a] corporation with no employees acts in California only through someone else, and UHSI has chosen to act through UHSD under a contract requiring UHSD to act in UHSI’s name and for UHSI’s benefit. That confirms, rather than refutes, that everything done in California on UHSI’s behalf is UHSI’s own conduct.” (Opp., p. 8:12-16.)

The Court finds this argument to be perplexing. The absence of employees does not substantiate that UHSI has purposefully directed its activities towards California by compelling UHSD to engage in forum contacts. Rather, it indicates that UHSI is dependent on UHSD for employee provision, not that UHSI directed these employees to engage in California-related activities. Consequently, the Court lacks personal jurisdiction based on this theory.

Alter Ego

“ [T]he conditions under which the corporate entity may be disregarded vary according to the circumstances in each case and the matter is particularly within the province of the trial court. [Citations.] This is because the determination of whether a corporation is an alter ego of an individual is ordinarily a question of fact.’ ” (Misik v. D’Arco (2011) 197 Cal.App.4th 1065, 1071-1072 (Misik), quoting Alexander v. Abbey of the Chimes (1980) 104 Cal.App.3d 39, 46 (Alexander).) “There are two requirements for disregarding the corporate entity: first, that there is a sufficient unity of interest and ownership between the corporation and the individual or organization controlling it that the separate personalities of the individual and the corporation no longer exist and, second, that treating the acts as those of the corporation alone will sanction a fraud, promote injustice, or cause an inequitable result. [Citation.] ‘Both of these requirements must be found to exist before the corporate existence will be disregarded, and since this determination is primarily one for the trial court and is not a question of law, the conclusion of the trier of fact will not be disturbed if it is supported by substantial evidence.’ ” (Id. at p. 1072, quoting Alexander, supra, 104 Cal.App.3d at p. 47.)

“The first requirement for disregarding the corporate entity under the alter ego doctrine—whether there is sufficient unity of interest and ownership that the separate personalities of the individual and the corporation no longer exist—encompasses a series of factors. Among the many factors to be considered in applying the doctrine are (1) one individual’s ownership of all other assets of the individual and the corporation; (2) an individual holding out that he is personally liable for debts of the corporation; (3) identical directors and officers; (4) failure to

maintain minutes or adequate corporate records; (5) disregard of corporate formalities; (6) absence of corporate assets and inadequate capitalization; and (7) the use of a corporation as a mere shell, instrumentality or conduit for the business of an individual.” (Misik, supra, 197 Cal.App.4th at p. 1073.) “This list of factors is not exhaustive, and these enumerated factors may be considered with others under the particular circumstances of each case.” (Ibid.)

“ ‘ “No single factor is determinative, and instead a court must examine all the circumstances to determine whether to apply the doctrine.” ’ ” (Ibid., quoting *Zoran Corp. v. Chen* (2010) 185 Cal.App.4th 799, 812.)

“The second requirement for application of the alter ego doctrine is a finding that the facts are such that adherence to the fiction of the separate existence of the corporation would sanction a fraud or promote injustice.” (Misik, supra, 197 Cal.App.4th at p. 1073.) “The test for this requirement is that if the acts are treated as those of the corporation alone, it will produce an unjust or inequitable result.” (Ibid.)

Here, in an effort to establish a sufficient unity of interest and ownership between UHSI and Del Amo, Plaintiffs assert that: “The same individuals exercise the authority of UHSI and Del Amo at once: UHSI’s Executive Vice President and President of its Behavioral Health Division is Del Amo’s President; UHSI’s Chief Financial Officer is Del Amo’s Vice President; and UHSI’s General Counsel, Treasurer, and a Senior Vice President hold Del Amo’s offices of Secretary, Treasurer, and Director. (Costello Decl., Ex. 2, 9.) Del Amo’s own California Statement of Information lists its chief executive, secretary, and chief financial officer at UHSI’s Pennsylvania headquarters, and is signed by UHSI’s own Chief Financial Officer. (Costello Decl., Ex. 6.)” (Opp., p. 9:1-8.)

However, the Court finds this evidence to be insufficient in establishing alter ego liability. Plaintiffs’ assertion that UHSI and Del Amo share several officers and office space does not, in isolation, demonstrate that the two entities function as alter egos of each other. The absence of discussion regarding factors such as the ownership of assets, personal liability for the debts of the other entity, the maintenance of corporate minutes and records, adherence to corporate formalities, the sufficiency of corporate assets and capitalization, or the potential use of one corporation as a mere shell or instrumentality for

the business of the other, undermines Plaintiffs' assertions.

Furthermore, Plaintiffs

contend: "UHSI's finances, accounting, banking, taxes, insurance, and risk management are performed for it by UHSD 'in the name of and/or on behalf of UHSI' and 'from UHSI bank accounts.' (Costello Decl., Ex. 5 [PSA § 4].) UHSD prepares UHSI's public filings, and one Quality and Compliance Committee charter governs the enterprise. (Costello Decl., Exs. 2, 7.) On the federal record, the two are a single 'UHS' whose compliance function reports to UHSI's president. (Costello Decl., Ex. 10.)" (Opp., p. 9:8-12.)

Yet, the Court

notes that these assertions pertain to UHSI and UHSD, rather than UHSI and Del Amo. Plaintiffs do not clarify the relevance of this information in determining whether a sufficient unity of interest and ownership exists between UHSI and Del Amo to justify disregarding their separate legal identities.

As such, the Court lacks personal jurisdiction based on this theory.

JURISDICTIONAL DISCOVERY REQUEST

"A plaintiff attempting to assert jurisdiction over a nonresident defendant is entitled to an opportunity to conduct discovery of the jurisdictional facts necessary to sustain its burden of proof. [Citation.] In order to prevail on a motion for a continuance for jurisdictional discovery, the plaintiff should demonstrate that discovery is likely to lead to the production of evidence of facts establishing jurisdiction. [Citation.] ... A ruling on a motion to continue in order to allow additional time to discover jurisdictional facts lies in the trial court's discretion." (In re Automobile Antitrust Cases I & II (2005) 135 Cal.App.4th 100, 127, internal citations omitted.)

Here, Plaintiffs fail to

demonstrate that discovery is likely to produce evidence of facts that would establish jurisdiction. Although Plaintiffs have filed two motions to compel further discovery, they have not provided an

argument indicating that the requested information and documents may potentially lead to evidence supporting jurisdiction. As such, Plaintiffs failed to carry their burden, and the request is DENIED.

Accordingly, the Court GRANTS
UHSI's motion to quash service of the summons.

MOTIONS TO COMPEL FURTHER

Legal Standards

Code of Civil Procedure

section 2030.300 provides that "[o]n receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that" the responses contain: (1) answers that are evasive or incomplete; (2) an unwarranted or insufficiently specific exercise of an option to produce documents in lieu of a substantive response; or (3) unmerited or overly generalized objections.

(Code Civ. Proc., §2030.300, subd. (a).) "[N]otice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response to the interrogatories." (Code Civ. Proc., §2030.300, subd. (c).) Moreover, "[a] motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., §2030.300, subd. (b)(1).)

Additionally, "Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (Code of Civ. Proc., § 2017.010.) For discovery purposes, information is regarded as relevant "if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof." (City of Los Angeles v. Superior Court (2017) 9 Cal.App.5th 272, 288.)

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §2030.300, subd. (d).)

A motion to compel further responses to a demand for inspection or production of documents may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive, or incomplete claims of inability to comply; or (3) unmeritorious or overly generalized objections. (Code Civ. Proc., § 2031.310, subd. (a).) Moreover, “[t]he motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., §2031.310, subd. (b)(2).)

A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand. (Code Civ. Proc., § 2031.310, subd. (b)(1).) “To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.” (Digital Music News LLC v Superior Court (2014) 226 Cal.App.4th 216, 224 (“Digital Music News LLC”).) If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (Kirkland v. Superior Court (2002) 95 Cal. App.4th 92, 98.)

“[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

Under Code of Civil Procedure section 2023.030, subdivision (a), “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including

attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2023.030, subd.

(a).) "Misuses of the discovery process

include ... (d) Failing to respond or to submit to an authorized method of discovery. (h) Making or opposing, unsuccessfully and

without substantial justification, a motion to compel or to limit discovery." (Code Civ. Proc., § 2023.010, subds. (d),

(h).) "The court may award sanctions

under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Cal.

Rules of Court, rule 3.1348(a).)

Discussion

Plaintiffs move to compel

further responses to Special Interrogatories Nos. 3 to 11, 14, 16 to 18, 22 to 25, and 28, as well as Requests for Production of Documents Nos. 5 to 12, 14, 19, 21, and 23. (MTCF re: SROG Notice, p. 2:1-2.; MTCF re: RPD Notice, p. 2:5-6.)

Additionally, Plaintiffs are seeking \$6,000.00 in sanctions to cover the attorneys' fees associated with filing these motions. (MTCF re: SROG, pp. 8:20-9:2; MTCF re: RPD, pp. 8:20-9:2.) However, the Court is precluded from granting the requested further responses, the production of documents, or any sanctions in light of the Motion to Quash, as discussed above, being GRANTED.

Accordingly, the Court DENIES Plaintiffs' motions and the accompanying requests for sanctions.

ORDERS

1) Specially

Appearing Defendant Universal Health Services, Inc.'s Motion to Quash Service of Summons for Lack of Personal Jurisdiction is GRANTED.

2) Plaintiffs'

Requests to Continue the Hearing and Permit Jurisdictional Discovery are DENIED.

3) Plaintiffs'

Motion to Compel Defendant Universal Health Services, Inc.'s Responses to Special Interrogatories (Set One) is DENIED.

4) Plaintiffs'

Motion to Compel Defendant Universal Health Services, Inc.'s Responses to Requests for Production (Set One) is DENIED.

5) Plaintiffs'

Requests for Monetary Sanctions are DENIED.

6) Plaintiffs

are ordered to provide notice of this Court's ruling.

IT

IS SO ORDERED.

DATED: July 8, 2026

Tamara

Hall

Judge

of the Superior Court